

COURT OF APPEALS, DIVISION I

STATE OF WASHINGTON

ZACKARIAH BENNETT,

Appellant,

v.

MELVINA MANNING,

Respondent.

Court of Appeals No.: 87007-6

Superior Court No.: 23-2-11352-7 KNT

MOTION TO RECONSIDER DENIAL OF ACCOMMODATION UNDER GR 33

TO: THE HONORABLE COURT OF APPEALS, DIVISION I:

Appellant Zackariah Bennett respectfully moves the Court to reconsider its decision denying his request for accommodation under GR 33, specifically for the appointment of counsel or paralegal support. Appellant, who is indigent, disabled, and emotionally compromised, is representing himself pro se.

I. Background

On 11/01/2024, the Court denied Appellant's request for accommodation, stating that appointing counsel or a paralegal would "fundamentally change the nature of appellate court services" under GR 33(c)(2)(D). Appellant's indigent status was recognized by the Court through the waiver of filing fees at the start of the appeal.

II. Legal Grounds for Reconsideration

1. GR 33(a)(1)(C) – Legal Representation as an Accommodation

GR 33(a)(1)(C) explicitly supports the provision of legal representation for otherwise unrepresented disabled individuals when necessary to make court services fully accessible. Since Appellant’s disabilities impair his ability to participate meaningfully without legal support, appointing counsel or paralegal assistance aligns directly with this provision. Furthermore, as an indigent litigant, Appellant lacks the resources to obtain this support privately, making the requested accommodation essential to ensuring his fair access to justice.

2. Individualized Accommodation Requirement under ADA and WLAD

The Americans with Disabilities Act (ADA) and the Washington Law Against Discrimination (WLAD) mandate that accommodations be provided on an individualized basis to ensure equal access for individuals with disabilities. Courts are required to ensure reasonable modifications, even if such accommodations may impact the outcome (as established in **Martin v. PGA Tour, Inc.**, 532 U.S. 661 (2001)).

3. Precedent in **Weems v. State Board of Industrial Appeals**

The amicus brief in **Weems** argued that providing legal assistance as an accommodation does not fundamentally alter court services but ensures that individuals with disabilities can meaningfully participate. Denying such assistance conflicts with ADA requirements, especially when the applicant’s indigent status limits alternative means of representation.

4. Impact on Access to Justice

Without the requested support, Appellant’s disabilities prevent him from preparing and presenting his case effectively, which affects his ability to address complex legal arguments. This assistance would not alter the Court's essential functions but rather aligns with Washington State’s judicial commitment to accessible and fair justice, as outlined in its Principal Policy Goals (see Washington State Constitution, Article I, Section 10).

III. Request for Relief

For these reasons, Appellant respectfully requests that the Court reconsider its denial of his accommodation request and provide counsel or paralegal support to ensure his meaningful participation in this appeal.

DATED: 11/08/2024

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written in a cursive style.

Appellant, pro se